



CHAPTER 37.

An Act to amend certain enactments relating to the government of India, and to remove doubts as to the validity of certain Orders in Council made for India.

A.D. 1916.

[23rd August 1916.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) In section sixty-three of the Government of India Act, 1915 (in this Act referred to as "the principal Act"), shall be inserted the following sub-sections :—

Elections and nominations for legislative councils.

5 & 6 Geo. 5.
c. 61.

"(6A) Rules made under this section may provide for the final decision of doubts or disputes as to the validity of an election.

"(6B) subject to any rules made under this section, any person who is a ruler or subject of any state in India shall be eligible to be nominated a member of a legislative council."

(2) In sections seventy-four and seventy-six of the principal Act corresponding sub-sections shall be inserted, and shall be numbered (4A) and (4B) in section seventy-four and (3A) and (3B) in section seventy-six.

(3) This section shall apply to and shall validate rules and nominations made as well before as after the commencement of this Act.

2.—(1) In section seventy-one of the principal Act shall be inserted the following sub-section :—

Removal of doubts as to validity of certain Indian laws.

"(3A) A regulation made under this section for any territory shall not be invalid by reason only that it confers or delegates power to confer on courts or administrative authorities power to sit or act outside the territory in respect of which they have jurisdiction or functions, or that it confers or delegates power to

A.D. 1916.

confer appellate jurisdiction or functions on courts or administrative authorities sitting or acting outside the territory."

(2) In section eighty-four of the principal Act, after the words "Governor-General in Legislative Council" shall be inserted the words "or a local legislature," and, at the end of the section, shall be inserted the following words:—

"A law made by any authority in British India and repugnant to any provision of this or any other Act of Parliament shall, to the extent of that repugnancy, but not otherwise, be void."

(3) This section shall apply to and shall validate laws made as well before as after the commencement of this Act.

Qualification
of rulers and
subjects of
certain states
for office,

3. After section ninety-six of the principal Act shall be inserted the following section:—

"96A. Notwithstanding anything in any other enactment, the Governor-General in Council, with the approval of the Secretary of State in Council, may, by notification, declare that, subject to any conditions or restrictions prescribed in the notification, any named ruler or subject of any state in India shall be eligible for appointment to any civil or military office under the Crown to which a native of British India may be appointed, or any named subject of any state, or any named member of any independent race or tribe, in territory adjacent to India, shall be eligible for appointment to any such military office."

Admission to
Indian Civil
Service.

4. In section ninety-seven of the principal Act, after the words "British subjects" shall be inserted the words "and of persons in respect of whom a declaration has been made under the last foregoing section who are," and, after sub-section (2), shall be inserted the following sub-section:—

"(2A) The admission to the Indian Civil Service of a British subject who or whose father or mother was not born within His Majesty's dominions shall be subject to such restrictions as the Secretary of State in Council, with the advice and assistance of the Civil Service Commissioners, may think fit to prescribe, and all such restrictions shall be included in the rules."

Removal of
doubts as to
validity of
Orders in
Council under
Foreign Juris-
diction Act.
53 & 54 Vict.
c. 37.

5. An Order of His Majesty in Council heretofore or hereafter made under the Foreign Jurisdiction Act, 1890, empowering the Governor-General of India in Council to make rules and orders in respect of courts or administrative authorities acting for any territory, shall not be invalid by reason only that it confers or delegates power to confer on courts or administrative authorities power to sit or act outside the territory in respect of which they have jurisdiction or functions, or that it confers or

delegates power to confer appellate jurisdiction or functions on courts or administrative authorities sitting or acting outside the territory. A.D. 1916. —

6.—(1) India stock may, if registered for the time being as stock transferable by deed in manner provided by regulations made under this section, be transferred by deed. Transfer of India stock by deed.

(2) The Banks of England and Ireland respectively, with the concurrence of the Secretary of State in Council, shall provide by regulations for a separate stock register being kept for India stock which is for the time being transferable by deed, for the conditions upon which stock is to be entered in or removed from that register, for the mode in which the transfer by deed is to be carried out, and for the payment of any fees in respect of the entry or removal of stock in or from the register and the carrying out of any transfer of stock by deed.

(3) The provisions of all enactments relating to India stock which are in force at the commencement of this Act shall apply to stock transferable by deed in pursuance of this section as they apply to stock transferable in the books of the Banks of England or Ireland, or of the Secretary of State in Council, except so far as express provision is made to the contrary by this section or by the regulations made thereunder.

(4) No stamp duty shall be payable in respect of any deed of transfer of India stock or any dividend warrant or register certificate relating to India stock.

(5) In this section the expression "India stock" means any stock created and issued, whether before or after the commencement of this Act, by the Secretary of State in Council under the authority of Parliament.

7.—(1) The principal Act shall be further amended in manner appearing in the First Schedule to this Act. Minor amendments, repeals, and saving.

(2) The enactments specified in the Second Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

(3) Nothing in this Act shall affect any right acquired before the commencement of this Act under any judgment or order of a court of competent jurisdiction.

8.—(1) This Act may be cited as the Government of India (Amendment) Act, 1916, and the principal Act and this Act may be cited together as the Government of India Acts, 1915 and 1916. Short title, commencement, printing, and construction.

(2) This Act shall come into operation on the first day of September, one thousand nine hundred and sixteen.

(3) Where any enactment or word is directed by this Act, or by any Act for the time being in force, whether passed before or after the commencement of this Act, to be inserted in

A.D. 1916. — or added to the principal Act, or to be substituted in the principal Act for any other enactment or word, or where any enactment or word in the principal Act is so directed to be repealed, then all copies of the principal Act printed by His Majesty's printers after that direction takes effect shall be printed with that enactment or word inserted in or added to the Act, or printed therein in lieu of any enactment or word for which the same is substituted, or omitted therefrom, according as the direction requires, and with the sections and sub-sections numbered in accordance with the direction; and the principal Act shall be construed as if it had, at the time at which the direction takes effect, been enacted with that addition, substitution or omission.

(4) A reference in any enactment, whether passed before or after the commencement of this Act, to the principal Act shall, unless the context otherwise requires, be construed to refer to that Act as amended by any enactment for the time being in force.

SCHEDULES.

A.D. 1916.

FIRST SCHEDULE.

Section 7 (1).

FURTHER AMENDMENTS OF THE GOVERNMENT OF INDIA ACT, 1915.

Enactment to be amended.	Amendment.
The Government of India Act, 1915 (5 & 6 Geo. 5, c. 61).	
Section 3 (3) -	The word "British," where secondly occurring, shall be repealed.
Section 13 (1) -	For this sub-section shall be substituted the following sub-section:— "(1) Where an order or communication concerns the levying of war, or the making of peace, or the public safety, or the defence of the realm, or the treating or negotiating with any prince or state, or the policy to be observed with respect to any prince or state, and a majority of votes therefor at a meeting of the Council of India is not required by this Act, the Secretary of State may send the order or communication to the Governor-General in Council or to any Governor in Council or officer or servant in India without submitting it to a meeting of the council or depositing it for the perusal of the members of the council or sending or giving notice of the reasons for making it, if he considers that it is of a nature to require secrecy."
Section 13 (2) -	The words "or any of the matters aforesaid" shall be substituted for the words "or the levying of war, or the making of peace, or negotiations or treaties with any prince or state."
Section 21 -	At the end of this section shall be added the words "Provided that a grant or appropriation made in accordance with provisions or restrictions prescribed by the Secretary of State in Council with the concurrence of a majority of votes at a meeting of the council shall be deemed to be made with the concurrence of a majority of such votes."

[CH. 37.] *Government of India (Amendment)* [6 & 7 GEO. 5.]
Act, 1916.

A.D. 1916.

Enactment to be amended.	Amendment.
The Government of India Act, 1915 (5 & 6 Geo. 5, c. 61)— <i>cont.</i>	
Section 26 - -	The words "twenty-eight days" shall be substituted for the words "fourteen days."
Section 27 (10) -	The words "or retiring" shall be inserted after the word "superannuation"; the words "and their legal personal representatives shall, for the purposes of gratuity" shall be inserted after the word "allowance"; and the words "the auditor and his assistants" shall be substituted for the word "they."
Sections 28 (1) and 30 (1).	The words "or personal" shall be inserted after the word "real," where secondly occurring, and the words "or otherwise" shall be inserted after the word "mortgage."
Section 28 (2) -	The word "two" shall be substituted for the word "three."
Sections 63 (3) and 74 (2).	The words "any office of profit" shall be substituted for the word "office."
Sections 64 (3), 75 (3) and 78 (2).	The words "or when questions are asked" shall be inserted after the words "any matter of general public interest."
Sections 67 (3) and 80 (3).	The words "or when questions are asked" shall be inserted after the words "at any such discussion."
Section 86 (1) -	The words "and a Lieutenant-Governor in Council" shall be inserted after the words "a Governor in Council."
Section 92 (3) -	The words "or special duty" shall be inserted after the words "is absent on leave."
Section 94 - -	The words "or special duty" shall be inserted after the words "absence on leave," and the words "absence may be permitted" shall be substituted for the words "leave may be granted."
Section 99 (1) -	The words "in British India," where secondly occurring, shall be repealed.
Section 106 - -	In this section shall be inserted the following subsection :— "(1 A) The letters patent establishing, or vesting jurisdiction, powers or authority in, a high court may be amended from time to time by His Majesty by further letters patent."

[6 & 7 GEO. 5.] *Government of India (Amendment)* [CH. 37.]
Act, 1916.

A.D. 1916.

Enactment to be amended.	Amendment.
The Government of India Act, 1915 (5 & 6 Geo. 5, c. 61)—<i>cont.</i>	
Section 107, proviso.	The word "law" shall be substituted for the word "Act."
Section 109 (1) -	The words "any British subject for the time being within" shall be substituted for the words "Christian subjects of His Majesty resident in."
Section 110 (1) -	The words "lieutenant-governor and chief commissioner" shall be inserted after the words "each governor," and the words "the executive council of the governor-general or of a governor or lieutenant-governor" shall be substituted for the words "their respective executive councils."
Section 114 -	At the end of this section shall be added the following sub-section:— "(3) On the occurrence of a vacancy in the office of advocate-general, or during any absence or deputation of an advocate-general, the Governor-General in Council in the case of Bengal, and the local Government in other cases, may appoint a person to act as advocate-general; and the person so appointed may exercise the powers of an advocate-general until some person has been appointed by His Majesty to the office and has entered on the discharge of his duties, or until the advocate-general has returned from his absence or deputation, as the case may be, or until the Governor-General in Council or the local Government, as the case may be, cancels the acting appointment."
Section 120 -	The words "Secretary of State" shall be substituted for the words "Chancellor of the Exchequer"; the words "Madras or Bombay" shall be inserted after the words "Bishop of Calcutta," where thirdly and fourthly occurring; and the words "to be paid quarterly" and the word "British" shall be repealed.

[CH. 37.] *Government of India (Amendment)* [6 & 7 GEO. 5.]
Act, 1916.

A.D. 1916. For the Fifth Schedule shall be substituted the following :—

“ FIFTH SCHEDULE.

Section 131 (3). PROVISIONS OF THIS ACT WHICH MAY BE REPEALED OR ALTERED
BY THE GOVERNOR-GENERAL IN LEGISLATIVE COUNCIL.

Section.	Subject.
62 - - - - -	Power to extend limits of presidency towns.
106 - - - - -	Jurisdiction, powers, and authority of high courts.
108 (1) - - - - -	Exercise of jurisdiction of high court by single judges or division courts.
109 - - - - -	Power for Governor-General in Council to alter local limits of jurisdiction of high courts, &c.
110 - - - - -	Exemption from jurisdiction of high courts.
111 - - - - -	Written order by Governor-General in Council a justification for act in high court.
112 - - - - -	Law to be administered in case of inheritance, succession, contract and dealing between party and party.
114 (2) - - - - -	Powers of advocate-general.
124 (1) - - - - -	Oppression.
124 (4)—so far as it relates to persons employed or concerned in the collection of revenue or the administration of justice.	Trading.
124 (5)—so far as it relates to persons other than the governor-general, a governor, or a member of the executive council of the governor-general or of a governor.	Receiving presents.
125 - - - - -	Loans to princes or chiefs.
126 - - - - -	Carrying on dangerous correspondence.
128 - - - - -	Limitation for prosecutions in British India.
129 - - - - -	Penalties.”

SECOND SCHEDULE.

A.D. 1916.

ENACTMENTS REPEALED.

Section 7 (2).

Session and Chapter.	Short Title.	Extent of Repeal.
13 Geo. 3. c. 63.	The East India Company Act, 1772.	Sections forty-two, forty-three and forty-five.
24 Geo. 3. sess. 2, c. 25.	The East India Company Act, 1784.	The whole Act.
26 Geo. 3. c. 57.	The East India Company Act, 1786.	The whole Act.
9 Geo. 4. c. 74. -	The Criminal Law (India) Act, 1828.	Section fifty-six, except so far as in force in the Straits Settlements.
5 & 6 Geo. 5. c. 61.	The Government of India Act, 1915.	In section twenty-six, paragraph (d). In section eighty-seven, subsections (2), (3), (4), and (5). Section one hundred and sixteen.

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